

21. S-PR-0014209 In Re the Estate of Lawson, Linda Lee

Missing notice of hearing for petition to administer estate. Missing proof of service of notice of hearing.

Will is not self proving (witnesses did not execute any declaration or affidavit).
Missing proof of will.

Missing residence information for proposed executor (¶ 3h).

Missing required allegations at ¶ 5a(3)–(4) (RDP).

Clarification is needed as to person identified in ¶ 8 as "adopted grandson," which is insufficient to describe the relationship with decedent.

22. S-PR-0014210 In Re the Estate of Taylor, Susan C.

Missing original will. Prob.C. § 8200(a).

Missing declaration re terms of beneficiary trust. Local rule 80.2.1.

Missing residence information re proposed executor. Petition, ¶ 3h.

23. S-PR-0014212 In Re the Arlene M. Lane Liv Trust

Missing sufficient notice of hearing for petition to approve 1st / final trustee account. Notice as states incorrect location information for Department 2. Department 2 is located at Historic Courthouse, 101 Maple Street, Auburn, and not at the Hon. Howard G. Gibson Courthouse in Roseville.

24. S-PR-0014213 In Re the Estate of Wallace, Gloria O'deal

Missing sufficient notice of hearing for petition to administer estate. Notice as filed, served, and published states incorrect location information for Department 2. Department 2 is located at Historic Courthouse, 101 Maple Street, Auburn, and not at the Hon. Howard G. Gibson Courthouse in Roseville.

25. S-PR-0014214 In Re the Alan & Carolyn Meyer Trust

It is recommend the petition to determine trust property be denied.

Relief as to the Wells Fargo account is not available under *Estate of Heggstad* (1993) 16 Cal.App.4th 943 because the account is not described in any way in the trust or its schedules.

Relief is not available under *Kucker v. Kucker* (2015) 92 Cal.App.4th 90 because the trust and trust schedules do not include any general assignment language reaching all personal property.

Relief also cannot be granted through the pourover will. "In the absence of any transfer to [a] trust prior to [decendent's] death," assets become part of the decedent's estate despite will language expressing decedent's desire that assets be held in trust. *Placencia v. Strazicich* (2019) 42 Cal.App.5th 730, 735 & 743-744 (emphasis added). "It [is] error for the court to award [such property] directly to [a] trust in the absence of a probate proceeding." *Id.*, citing *Estate of Hart* (1957) 151 Cal.App.2d 271, 280–281. See also Prob.C. § 7001. "[A] probate court ha[s] no power to consider the legality of a will until it [is] regularly brought before it by a petition for its probate." *Estate of Burnett* (1935) 6 Cal.App.2d 116, 123.

These calendar notes are not a tentative ruling by the court on the merits of the petition. They are provided to assist the court and the parties to prepare for the hearing. Local Rule 80.1.4.

26. S-PR-0014215 In Re the Estate of Ward, Jay

Petition to administer estate is recommended for approval as prayed.

27. S-PR-0014216 In Re the Estate of Albrecht, Peter

Missing sufficient publication of notice of hearing. Notice as published states incorrect location information for Department 2. Department 2 is located at Historic Courthouse, 101 Maple Street, Auburn, and not at the Hon. Howard G. Gibson Courthouse in Roseville.

28. S-PR-0014313 In Re the Robert Des Jardin & Virginia Des Jardin Rev Trust

Appearance is required for status hearing re ex parte application and order.
Missing evidence of service of ex parte order.